

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

July 23, 2026

**Judge R. Shawn Nelson
Department C10**

Department C10 hears law and motion on Thursdays at 10:00 a.m. and 1:30 p.m.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5210. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording, and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling.

NO.	CASE NAME	MATTER
10:00 a.m		
1	Gill vs. Ortega's Moving & Delivery Service, Inc.	Counsel Sam Dehbozorgi c/o The Fullman Firm, P.C.'s motion to be relieved as counsel of record for Defendant Ortega's Moving & Delivery Service, Inc. is DENIED, without prejudice. California Rules of Court, rule 3.1362 sets forth the requirements for a motion to be relieved as counsel. Counsel Sam Dehbozorgi c/o The Fullman Firm, PC used the correct forms. (MC-051, MC-052, and MC-053). In his declaration (MC-052) Counsel declares that he served the client by mail at the client's last known address. However, while Counsel declares that he confirmed within the past 30 days that the address is current, he

		does not specify any of the means by which he confirmed this information. (MC-052, ¶ 3). Paragraph 3b of form MC-052 (declaration) requires the attorney to check off one of the following boxes if the attorney has confirmed that the address is current within the last 30 days: by mail, return receipt requested; by telephone; by conversation; or by other means (and to specify). Counsel did not check off any of these. Accordingly, the declaration is incomplete. Furthermore, the proof of service to the client contains errors. The proof of service to the client states that service was made upon “Plaintiff [not Defendant] Brenda Ortega.” In addition to incorrectly listing the party as a Plaintiff, Counsel lists the client as “Brenda Ortega.” While it may be assumed that Brenda Ortega owns and/or receives service on behalf of Ortega’s Moving & Delivery Service, Inc., the proof of service must depict service to the client. Cal. R. Ct., rule 3.1362, subd. (d), provides: “The notice of motion and motion, the declaration, and the proposed order must be served on the <u>client</u> and on all other parties who have appeared in the case. The notice may be by personal service, electronic service, or mail.” (Emphasis added). (See also Code Civ. Proc. § 1013a [proof of service by mail must include name and address of person served]). Here, the client is Ortega’s Moving & Delivery Service, Inc. Because Counsel failed to complete Paragraph 3 of his declaration on form MC-052, and submitted a proof of service with errors, the court DENIES the motion, without prejudice, so that Counsel may correct these errors. Counsel shall give notice to all parties, including the client, of this ruling
2	Benitez vs. Nissan North America, Inc.	Andrew C. Jung moves to be relieved as counsel of record for Plaintiffs Maria and Victor Benitez. The motion is GRANTED. The order relieving counsel will be effective upon the filing of a proof of service of the executed order upon all parties. Moving counsel shall give notice of this ruling.
1:30 p.m.		
1	Chan vs. General Motors LLC	1. Motion to Compel Further Response to Form Interrogatories Defendant General Motors, LLC is ordered to provide further verified responses, without objections, to Plaintiff’s Form Interrogatories, Set One, Nos. 12.1, 15.1 and 17.1 (as to RFAs Nos. 4, 8, 9, 10, 11, 14, 15 and 16), within 15 days’ notice of this order. (Code Civ. Proc., § 2030.300.) Additionally, Defendant General Motors, LLC and Counsel Erskine Law Group APC, are ordered to jointly pay sanctions to Plaintiff, in the amount of \$1,640.50. (Code Civ. Proc., § 2030.300, subd. (d).)

As to all Form Interrogatories at issue in this motion, the Court finds Defendant failed to properly invoke Code of Civil Procedure section 2030.230. Initially, it is not clear that any of the relevant interrogatories “necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed,” as contemplated by section 2030.230; however, regardless, Defendant failed to identify documents with “sufficient detail to permit the propounding party to locate and to identify...the documents from which the answer may be ascertained.” (Code Civ. Proc., §2030.230.) “A broad statement that the information is available from a mass of documents is insufficient.” (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 784.)

Defendant appears to argue that prior compliance with Code of Civil Procedure section 871.26 exempts it from responding to additional discovery; however, Code of Civil Procedure section 871.26 makes clear that, where an action is not resolved in mediation “standard discovery procedures...shall apply.” (Code Civ. Proc., § 871.26, subd. (e).)

Moreover, Defendant has not demonstrated that any specific request included herein, within Plaintiff’s first set of discovery, is inappropriately cumulative.

Additionally, the Court finds Defendant failed to comply with Code of Civil Procedure section 2030.220. Pursuant to Code of Civil Procedure section 2030.220, subdivision (a), “[e]ach answer in response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.” (Code Civ. Proc., §2030.220, subd. (a).)

“If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.” (Code Civ. Proc. §2030.220, subd. (c).)

Additionally, further responses are ordered as, in multiple instances, Defendant failed to respond to all included subcategories of information.

Lastly, the Court notes that Defendant failed to support any objection: “[I]f a timely motion to compel has been filed, the burden is on responding party to justify any objection.” (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255, citing *Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221.)

The objection to the term “INCIDENT,” directed towards Form Interrogatory No. 12.1, fails. As explained by the Court in *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, “where the question is somewhat

ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response.” (*Id.* at 783.) Defendant’s partial response demonstrates Defendant understood the information being requested.

Plaintiff to give notice.

2. Motion to Compel Further Response to Special Interrogatories

Defendant General Motors, LLC is ordered to provide further verified responses, without objections, to Plaintiff’s Special Interrogatories, Set One, Nos. 1, 2, 4, 5, 9-18 and 23-36, within 15 days’ notice of this order. (Code Civ. Proc., § 2030.300.) With respect to Special Interrogatory No. 32, as conceded by Plaintiff, Defendant’s response shall be limited to vehicles purchased in California that are the same year, make and model as Plaintiff’s. (See Separate Statement [ROA No. 32], as SROG 32.)

Additionally, Defendant General Motors, LLC and Counsel Erskine Law Group APC, are ordered to jointly pay sanctions to Plaintiff, in the amount of \$2,512.50, which includes 4.5 hours of labor calculated at \$545 per hour and a \$60.00 filing fee. (See ¶10 of Faulk Declaration and Code Civ. Proc., § 2030.300, subd. (d).)

Initially, the Court finds that all requests seek information relevant to Plaintiff’s Song-Beverly claims. In particular, the requests seek information relating to Defendant’s denials, affirmative defenses, and claims in this action. (See Special Interrogatories Nos. 1, 2, 4, 5, 9-18, 23-29, 34 and 35.)

Additionally, the requests seek information relevant to Plaintiff’s allegation that her vehicle suffered from a defect, such that Defendant was required to repair, replace or repurchase it. (See Special Interrogatories Nos. 30, 31, 33 and 36.)

With respect to Special Interrogatory No. 32, Defendant’s knowledge of similar complaints is relevant to establishing whether Defendant acted willfully, in failing to repair, replace or refund Plaintiff’s vehicle. (Civ. Code, § 1794, subd. (c).) Likewise, the existence of similar complaints is relevant to establishing the underlying defect.

Courts have found information relating to other vehicles suffering from the same defect to be relevant and not unduly prejudicial. (*Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138, 154.)

Plaintiff has appropriately limited her request to vehicles of the same make and model as her own. Moreover, within the instant motion, Plaintiff offers a further limitation, to vehicles purchased in California, of the same *year* as Plaintiffs. (See Separate Statement [ROA No. 32], at SROG No. 32.) These limitations are reasonable and avoid overbreadth.

Thereafter, Defendant generally objected to *several* requests, invoking attorney-client privilege, the work product doctrine and burden; however, these objections were unsupported. “[I]f a timely motion to compel has been filed, the burden is on responding party to justify any objection.” (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255, citing *Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221.)

Defendant repeatedly asserted that compelling further responses would impose an “undue burden” on General Motors, LLC; however, an “objection based upon burden must be sustained by evidence showing the quantum of work required...” (*West Pico Furniture Co. of Los Angeles v. Superior Court* (1961) 56 Cal.2d 407, 417.) “The objection of burden is valid only when that burden is demonstrated to result in injustice.” (*Id.* at p. 418.) No such showing was made here.

Defendant repeats its assertion that its’ earlier compliance with Code of Civil Procedure section 871.26 exempts it from further discovery; however, Code of Civil Procedure section 871.26 makes clear that, where an action is not resolved in mediation “standard discovery procedures...shall apply.” (Code Civ. Proc., § 871.26, subd. (e).)

Defendant has not demonstrated that any specific request included within Plaintiff’s first set of discovery is inappropriately cumulative.

With respect to Special Interrogatories Nos. 9 through 18 and 23 through 29, each asks Defendant to clarify the claims it is making within this action and then, subsequently, to identify specific responsive information, relating to those claims. Defendant responded to these interrogatories with a list of produced documents; however, these responses were evasive and failed to comply with Code of Civil Procedure sections 2030.230.

Each of the above special interrogatories expressly asked Defendant to indicate whether it was making certain claims and to provide information relating to the claims asserted. The interrogatories did not “necessitate[] the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed,” as contemplated by Code of Civil Procedure section 2030.230.

Moreover, Plaintiff necessarily cannot discern the answer to these interrogatories from the referenced documents, as Plaintiff does not know what claims Defendant is making in its defense. Defendant essentially directed Plaintiff to a mass of documents, invited Plaintiff to hypothesize as to the arguments Defendant *may* raise, and then to independently search for evidence in support of the hypothetical positions Plaintiff invented.

These responses were evasive and failed to comply with Code of Civil Procedure section 2030.220, subdivision (a).

Plaintiff to give notice.

3. Motion to Compel Further Response to Request for Production

Defendant General Motors, LLC is ordered to provide further verified responses, without objections, to Plaintiff's Request for Productions, Set One, Nos. 2, 32 and 38-40, within 15 days' notice of this order. (Code Civ. Proc., § 2031.310.) With respect to Request for Production No. 32, consistent with the ruling on Plaintiff's Special Interrogatories, Defendant's response shall be limited to vehicles purchased in California that are the same year, make and model as Plaintiff's. (See Separate Statement [ROA No. 32], as SROG 32.)

Additionally, Defendant General Motors, LLC and Counsel Erskine Law Group APC, are ordered to jointly pay sanctions to Plaintiff, in the amount of \$2,022. (Code Civ. Proc., § 2031.310, subd. (h).)

Initially, the Court finds "good cause" for the discovery sought within this motion. (Code Civ. Proc., § 2031.310, subd. (b)(1).)

"Good cause" for production of documents may be established where it is shown that the request is made in good faith and the documents sought are relevant to the subject matter and material to the issues in the litigation. (*Associated Brewers Distributing Co. v. Superior Court* (1967) 65 Cal.2d 583, 588.) "[T]he trial court [must] be afforded the factual data necessary to make an informed ruling on the issues of good cause." (*Id.* at pp. 586-587.)

Here, the requests themselves, when compared to the Complaint and Defendant's Answer, provide sufficient information for the Court to determine "good cause."

For example, "good cause" is apparent in connection with Request for Production No. 2, as the same seeks documents supporting Defendant's affirmative defenses. (See Separate Statement [ROA No. 34].)

Similarly, "good cause" as to Request No. 32 is apparent, as the Request seeks complaints involving the same vehicle as Plaintiff, and the same problems reported by her. (See Separate Statement [ROA No. 34].)

Defendant's knowledge of, and investigation into, complaints regarding the same defect, are relevant to establish whether Defendant acted willfully, in failing to repair, replace or refund Plaintiff's vehicle. (Civ. Code, § 1794, subd. (c); See also ¶27 of Complaint.) Similarly, the existence of similar complaints is relevant to establish the underlying defect.

Courts have found that information relating to other vehicles suffering from the same defect is relevant and not unduly prejudicial. (*Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138, 154.) While Defendant disputes this holding, Defendant exclusively cites nonbinding federal authorities. (See *Nunez v. Nevell Group, Inc.* (2019) 35 Cal.App.5th 838, 847.)

Finally, Plaintiff has established sufficient “good cause,” as to Requests Nos. 38 through 40, which all relate to Defendant’s “qualified third party dispute resolution process.” (See Separate Statement [ROA No. 34].)

Relevant to these requests, Civil Code section 1794, subdivision (e)(2) states: “If the manufacturer maintains a qualified third-party dispute resolution process which substantially complies with Section 1793.22, the manufacturer shall not be liable for any civil penalty pursuant this subdivision.”

Plaintiff’s Complaint expressly requests penalties under Civil Code section 1794 (See ¶27, ¶33, ¶34, ¶41, ¶47, ¶53 and ¶59 of Complaint; See also ¶1-¶7 of Prayer.) Similarly, Defendant’s 18th Affirmative Defense expressly responds to the above, stating: “GM maintains a qualified third-party dispute resolution process that substantially complies with California Civil Code § 1793.22...since Plaintiff did not avail herself of the third-party dispute resolution process before filing the Unverified Complaint, § 1794(e)(2) of the California Civil Code affirmatively bars Plaintiff from recovering treble damages (as provided under California Civil Code § 1794(e)) and Plaintiff cannot avail herself of the rebuttable presumption under California Civil Code § 1793.22(e)(1).” (See Answer [ROA No. 9].)

Given the above, requests relating to the alleged “third-party dispute resolution process” and, specifically, to its compliance with Civil Code section 1793.22, are relevant.

In response to the above requests, Defendant asserted objections based on attorney-client privilege, the work product doctrine and burden; however, the objections were unsupported. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255, citing *Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221.) With respect to the objection based on burden, Defendant offered no evidence which demonstrates the “quantum of work required” or which otherwise demonstrates the requests will result in prejudice. (*West Pico Furniture Co. of Los Angeles v. Superior Court* (1961) 56 Cal.2d 407, 417.)

Defendant seems to repeat its’ assertion that its’ earlier compliance with Code of Civil Procedure section 871.26, exempts it from further discovery; however, Code of Civil Procedure section 871.26 makes clear that, where an action is not resolved in mediation “standard discovery

		procedures...shall apply.” (Code Civ. Proc., § 871.26, subd. (e).) Defendant has not demonstrated that any specific request included within Plaintiff’s first set of discovery is inappropriately cumulative. With respect to Request for Production No. 32, Defendant briefly invokes privacy (See Opposition: 9:27-10:7); however, a privacy objection was not included in Defendant’s response. Consequently, any such objection has been waived. (Code Civ. Proc., § 2031.300, subd. (a).) Additionally, regardless, Defendant misapplies the burden. As explained by the California Supreme Court in <i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, “[t]he party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious.” (<i>Id.</i> at p. 552.) “The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (<i>Ibid.</i>) Similar to <i>Puerto v. Superior Court</i> (2008) 158 Cal.App.4th 1242, “the requested information, while personal, is not particularly sensitive, as it is merely contact information, not medical or financial details, political affiliations, sexual relationships, or personnel information.” (<i>Id.</i> at p. 1253.) At most the requested information will consist of names, contact information, and similar mechanical complaints regarding the individual vehicles. This information is not particularly sensitive, and the threatened intrusion is not serious. Consequently, any privacy interest is easily outweighed by Plaintiff’s need for discovery. Finally, with respect to Requests for Production Nos. 38 through 40, Defendant asserts “GM has already provided all responsive documents in its possession” (See Responsive Separate Statement [ROA No. 52]); however, Defendant’s responses did not include verified statements of compliance, as contemplated by Code of Civil Procedure section 2031.220. Based on all the above, the motion is GRANTED. Plaintiff to give notice.
2	RLI Insurance Company as Subrogee of Pedicini Redhill LLC vs. Straub Distributing Company, Ltd.	Defendant Spectrum Pacific West LLC (Spectrum)’s motion to compel Engle Martin & Associates, LLC’s compliance with subpoena is DENIED. Meet and Confer

As a preliminary matter, Engle Martin contends that Defendant Spectrum failed to meet and confer as required by statute.

Code Civ. Proc. § 2025.480 provides, in relevant part:

“(a) If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.

(b) This motion shall be made no later than 60 days after the completion of the record of the deposition, and shall be accompanied by a meet and confer declaration under Section 2016.040.” (Emphasis added).

Code Civ. Proc. § 2016.040, subd. (a) provides: “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.

The court agrees that Defendant’s counsel did not comply with this requirement. Defendant’s counsel, Ms. Morris, declares: “I received correspondence from representatives of Engle Martin and exchanged several emails with that representative. Attached and incorporated herein as Exhibit 2 is a true correct copy of the correspondence.” (Decl. of Morris, ¶ 5). There is no declaration of an attempt at a meet and confer via person, telephone or by videoconference.

Separate Statement

Cal. R. Ct., rule 3.1345(a)(6) requires a separate statement for a motion to compel the production of documents pursuant to a subpoena. Spectrum did not file a separate statement. However, neither the parties nor the subpoenaed party opposed or objected.

Subpoena to Foreign Entity

As stated above, Code Civ. Proc. § 2025.480 provides, in relevant part:

“(a) If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.”

Defendant Spectrum Pacific West LLC issued a subpoena for production of business records to third-party Engle Martin & Associates LLC, with

a deadline for production of records by February 17, 2026. (Decl. of Morris, ¶ 5, Ex. 1 [Subpoena for production of business records]).

Engle Martin contends that Defendant's subpoena is improper pursuant to Code Civ. Proc. § 1989, because Engle Martin is a foreign corporation that is based in Atlanta, Georgia. (Decl. of Robinson, ¶ 3). Code Civ. Proc. § 1989 provides: "A witness, including a witness specified in subdivision (b) of Section 1987, is not obliged to attend as a witness before any court, judge, justice or any other officer, unless the witness is a resident within the state at the time of service."

However, Code Civ. Proc. § 1989 does not apply to a subpoena for business records which does not require personal attendance. See Code Civ. Proc. §1987.3: "When a subpoena duces tecum is served upon a custodian of records or other qualified witness as provided in Article 4 (commencing with Section 1560) of Chapter 2 of Division 11 of the Evidence Code, and his personal attendance is not required by the terms of the subpoena, Section 1989 shall not apply." The subpoena for business records here does not require personal attendance. (See Decl. of Morris, Ex. 1).

As relevant here, Code of Civ. Proc. § 2026.010, subd. (c) provides that "a party serving a deposition notice under this section shall use any process and procedures required and available under the laws of the state, territory, or insular possession where the deposition is to be taken to compel the deponent to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection, copying, testing, sampling, and any related activity."

In states that have adopted the Interstate and International Depositions and Discovery Act, the clerk of the court in the other state is empowered to issue a subpoena requiring a person to attend and give testimony, produce documents or permit inspection of premises. (See Code Civ. Proc. § 2029.200, subd. (f)).

In this matter, it is undisputed that Defendant served Engle Martin a subpoena duces tecum by serving its agent for service of process the under the California Secretary of State- CT Corporation. It is also undisputed that Defendant has not requested the court clerk to issue a commission to a deposition officer in another state.

Rather, Defendant contends that service of the subpoena through Engle Martin's California Agent for Service of Process is sufficient pursuant to Corporations Code § 2110, which provides: "Delivery by hand of a copy of any process against a foreign corporation ... (c), if the corporation has designated a corporate agent, to any person named in the latest certificate of the corporate agent filed pursuant to Section 1505 shall constitute valid service on the corporation. A copy of the statement and designation, or a copy of the latest statement filed pursuant to Section

		2117, certified by the Secretary of State, is sufficient evidence of the appointment of an agent for the service of process.” Defendant cites to <i>Yamaha Motor Co., Ltd. v. Superior Court</i> (2009) 174 Cal.App.4th 264, where the court held that a Japanese manufacturer could be validly served with process by serving the American subsidiary via its agent for service of process: “[S]o we now turn to whether California law, like Illinois law in <i>Schlunk</i>, provides for proper service of ‘process on a foreign corporation by serving its domestic subsidiary which, under state law, is the foreign corporation's involuntary agent for service of process.’ ... As we shall see, the answer is yes.” (<i>Id.</i> at 270). However, <i>Yamaha Motor</i> concerned service of the initial summons and complaint, not a subpoena. See <i>Fujikura Ltd. v. Finisar Corporation</i> (N.D. Cal. 2015) WL 5782351 at *6: First, both the state statute and all of these cases pertain to service of the initial complaint and summons, see Cal. Civ. Code § 416.10 (in chapter on “Service of Summons”); see <i>Yamaha Motor Co., Ltd. v. Sup. Ct.</i>, 174 Cal. App. 4th 264, 267 (2009)—not a Rule 45 subpoena, which has service requirements that courts have construed more narrowly as discussed above. While Finisar insists that the rule also applies to service of subpoenas, but it does not cite a single case that held as much, and the Court has found none. Similarly, here, the applicable California statutes have particular requirements for serving a subpoena on an out-of-state entity, and Defendant has not cited any authority demonstrating that it may bypass these requirements by serving CT Corporation. (See Code of Civ. Proc. § 2026.010, subd. (C)). Because Defendant failed to adequately meet and confer, and failed to establish that it properly served Engle Martin with the subpoena, the court DENIES the motion. Defendant Spectrum shall give notice.
3	Shue vs. Kush	Plaintiffs Karin Kimberly Shue and Michelle Leigh Clouser move for preliminary injunction preventing Defendants from taking any action to continue, prosecute, or complete any foreclosure activity on the real property at 398 Gullotti Place, Placentia, California 92870 and 1804 Sonata Street, La Habra, California 90631 (the “Subject Property”). For the following reasons, the motion is GRANTED in part and DENIED in part. Defendants Paul Kush, Rosalie Kush, and Prestige Default Services, LLC, are hereby enjoined from taking any action to continue, prosecute, or complete a trustee’s sale on the Subject Property. <u>Standard on Issuing Preliminary Injunctions</u> Code of Civil Procedure Section 526(a)(3) provides that an injunction may be granted: “When it appears, during the litigation, that a party to

the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual.” (See *San Francisco Newspaper Printing Co., Inc. v. Superior Court* (1985) 170 Cal.App.3d 438, 442.) The purpose of Section 526(a)(3) is to preserve the status quo pending litigation. (See *Stockton v. Newman* (1957) 148 Cal.App.2d 558, 563.) “An injunction may be granted . . . [¶] [w]hen it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action.” (Code Civ. Proc., § 526(a)(2).)

In determining whether to issue a preliminary injunction, the court evaluates two interrelated factors: “(1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief.” (See *White v. Davis* (2003) 30 Cal.4th 528, 554; *Church of Christ in Hollywood v. Superior Court* (2002) 99 Cal.App.4th 1244, 1251.) With respect to the first factor, the court considers whether “there is a reasonable probability that the plaintiffs will prevail on the merits.” (*Robbins v. Superior Court* (1985) 38 Cal.3d 199, 206.)

The plaintiff has the burden of proof to show “upon a verified complaint, or upon affidavits” both elements necessary to support the issuance of a preliminary injunction. (Code Civ. Proc., § 527(a); *Butt v. State of California* (1992) 4 Cal.4th 668, 678 [holding “[a] trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim”].) The court may also consider the verified complaint and other discovery. (See *Continental Baking Co. v. Katz* (1968) 68 Cal.2d 512, 527; see also *Weil & Brown, supra*, at ¶¶ 9:574 - 9:581.) If plaintiff fails to establish either element, a preliminary injunction should be denied. (See Code Civ. Proc., § 527(a).)

“The decision to grant or deny a preliminary injunction is committed to the discretion of the trial court” (*Pleasant Hill Bayshore Disposal, Inc. v. Chip-It Recycling, Inc.* (2001) 91 Cal.App.4th 678, 695.) “The trial court’s determination must be guided by a ‘mix’ of the potential-merit and interim-harm factors; the greater the plaintiff’s showing on one, the less must be shown on the other to support an injunction.” (*Butt v. State of California* (1992) 4 Cal.4th 668, 678; see also *Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc.* (2016) 6 Cal.App.5th 1178, 1183 [holding the two showings operate on a sliding scale].) At the same time, “[t]he scope of available preliminary relief is necessarily limited by the scope of the relief likely to be obtained at trial on the merits.” (*Common Cause v. Board of Supervisors* (1989) 49 Cal.3d 432, 441-442.)

As the Supreme Court has explained: “The ultimate goal of any test to be used in deciding whether a preliminary injunction should issue is to minimize the harm which an erroneous interim decision may cause.” (*IT Corp. v. County of Imperial* (1983) 35 Cal.4th 63, 73.) “[A] court faced with the question of whether to grant a preliminary injunction cannot ignore the possibility that its initial assessment of the merits, prior to a full adjudication, may turn out to be in error.” (*White v. Davis, supra*, 30 Cal.4th at p. 561.) The court acts in favor of the party most likely to be injured. (*McCoy v. Matich* (1954) 128 Cal.App.2d 50, 52.)

Likelihood of Prevailing on the Merits

The Complaint pleads a claim for breach of contract, alleging Defendants materially breached among others, section 3.12 by failing to disclose known liabilities; section 3.13 by making inaccurate or incomplete tax-related representations; and section 6.7(a) by failing to cure payroll tax liabilities, timely file returns, timely pay pre-closing tax liabilities. (Compl. ¶ 120.)

To succeed on a claim for breach of contract, Plaintiffs must establish: (i) existence of the contract; (ii) Plaintiffs’ performance or excuse for nonperformance; (iii) Defendants’ breach; and (iv) damage to plaintiff resulting therefrom. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811.)

Existence of Contract. Here, it is undisputed that the parties entered into a Stock Purchase Agreement (the “SPA”) and related Promissory Note No. 2. (Clouser Decl. ¶ 16(a), Ex. A-B; P. Kush Decl. ¶ 2, Ex. A.)

Excuse for Nonperformance. It is undisputed Plaintiffs failed to make timely payments in July 2024, August 2024, and September 2024 (*see* Clouser Decl., Ex. J), which would be considered “an automatic Default with no opportunity to cure” under the Note’s section 7(i).

Nevertheless, Plaintiffs show they were excused from performing because of the undisclosed liabilities that became due in or before that time. For instance, liability for the two coaches/buses became due in December 2023. (*See* Clouser Decl. ¶¶ 35-42.) While there is some evidence Plaintiffs knew of and negotiated for financing to cover the down payment (*see* P. Kush Decl. ¶ 36), the liability was not disclosed in the parties’ fully integrated agreement (SPA § 10.5); and there is no evidence Defendants disclosed the full extent of the future liability, including the timing and amount of the liabilities (i.e., down payments and insurance due, monthly payments, etc.). (*See* P. Kush Decl. ¶¶ 33-37, Ex. I; Clouser Decl. ¶¶ 8, 42.)

In addition, Plaintiffs show Defendants did not disclose a substantial federal tax liability based on missing tax forms dating back to 2016. (Shue Supp. Decl. ¶ 17.)

Breach. Section 6.7(a) of the SPA provides Defendants shall cure all Payroll Tax Liability, files the company's 2021-2023 tax returns, and pay all liabilities reflected in such returns by 10/15/2024.

It is undisputed that Seller did not cure the liabilities and file the missing and delinquent returns before that deadline. In February 2025, Defendants learned they owed \$130,035.41 in total federal tax liability stemming from 2012-2015 unpaid taxes. (Clouser Reply Decl., Ex. D; *see also* Shue Decl. ¶ 28; P. Kush Decl., Ex. M.) Defendants then paid a lesser amount, \$85,960.68. (Kush Decl. ¶ 46, Ex. N.) Defendants do not explain why they did not pay the total liabilities as confirmed by Defendant Mr. Kush.

Plaintiffs also submit evidence Defendants falsely represented and warranted that the statements in Article 3, including the disclosure of all then existing liabilities, were true and correct. (SPA Art. 3.) As discussed above, Plaintiffs discovered an undisclosed coach liability of at least \$447,000 and undisclosed federal tax liability estimated to be \$394,114.55. (*See* Shue Supp. Decl. ¶¶ 6, 17.)

Damages. Plaintiffs submit credible evidence they may be entitled to offsets totaling over \$950,000.

Irreparable Harm

Under California law, residential property is deemed unique. (*See* Civ. Code, § 3387 [providing damages presumed inadequate for breach of agreement to convey real property]; *Aspen Grove Condominium Ass'n v. CNL Income Northstar LLC* (2014) 231 Cal.App.4th 53, 62-64 [finding invasion of plaintiff's land by continuous trespass of water warranted injunction regardless of damages].)

Here, the court finds the relative balance of harms that is likely to result from denying injunctive relief favors issuing the preliminary injunction. Plaintiffs' residential property is unique as a matter of law, and it is undisputed Defendants' have begun the non-judicial foreclosure process. (*See* Clouser Decl. ¶ 23, Exs. F-I.)

To the extent Plaintiffs request the court adjust the monthly installment payments going forward, Plaintiffs do not show risk of irreparable harm absent the requested adjustments to payment obligations.

Bond

A bond is required upon granting a preliminary injunction. (Code Civ. Proc., § 529.) The bond is intended to cover any damages to the defendant caused by issuance of the injunction. (*Top Cat Prods., Inc. v. Michael's Los Feliz* (2002) 102 Cal.App.4th 474, 478.)

In determining the bond amount, the court considers the types of

		damages the court allows the defendant to recover in the event the injunction is determined to have been unjustifiable. (<i>Abba Rubber Co. v. Sequist</i> (1991) 235 Cal.App.3d 1, 14 [finding \$1,000 bond inadequate where defendant shows possible lost profits of \$315,000].) These may include defense costs in those cases where attorney’s fees are recoverable. (<i>Ibid.</i>) While a defendant’s failure to request a bond does not waive the requirement does not waive the bond requirement (<i>Abba Rubber Co. v. Sequist</i> (1991) 235 Cal.App.3d 1, 10), the bond requirement may be affirmatively waived or forfeited. (<i>Smith v. Adventist Health System/West</i> (2010) 182 Cal.App.4th 729, 740, citing Civil Code section 3513 [providing that “[a]nyone may waive the advantage of a law intended solely for his benefit”], Code Civ. Proc., § 995.230 [providing the beneficiary of a bond may in writing consent to a bond in an amount less than the amount required by statute or may waive the bond].) Here, Plaintiffs argue Defendants waived their right to demand a bond. Section 10.10 of the SPA provides in relevant part that: “the parties shall be entitled to enforce any provision of this Agreement by a decree of specific performance and to temporary, preliminary, and permanent injunctive relief from a court of competent jurisdiction to prevent breaches or threatened breaches of the terms of this Agreement, without posting any bond or other undertaking” (SPA at § 10.10.) The court finds a bond in the amount of \$90,000 would reasonably protect Defendants against damages caused by the preliminary injunction. Plaintiffs Shue and Clouser SHALL file and serve proof of undertaking in the amount of \$90,000. Plaintiffs to give notice.
4	Adjemian vs. Gallo	Defendants Rafael Gallo’s Motion for Summary Adjudication is DENIED. Defendant Gallo moves for summary adjudication on the issue of whether or not Plaintiff is precluded from recovering attorney’s fees due to failure to meet condition precedent (mediation) contained in the Residential Purchase Agreement. “A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, . . . or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. (Code Civ. Proc., § 437c, subd. (f)(1).)

		Here, Defendant Gallo purports to move for partial summary adjudication on the singular issue of a portion of damages that does not completely dispose of Plaintiff's causes of action. A party is entitled to recover fees as "damages" only when the party brings an action against a third party as "the natural and probable consequence" of the defendant's misconduct. (<i>Prentice v. North Am. Title Guar. Corp.</i> (1963) 59 Cal.2d 618, 621.) Contractual attorney's fees are generally recoverable as costs, not an element of damages. (Code Civ. Proc., § 1033.5(a)(10)(A).). As such, the issue of attorneys' fees is not a "claim for damages" for which summary adjudication is available. Further, Defendant Gallo's motion for summary adjudication is untimely. Code of Civil Procedure 437c(a)(2) requires "Notice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing." If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days." (<i>Id.</i>) Here, 81 days before the July 23, 2026 hearing is Sunday, May 3, 2026. Because Defendant served the motion by electronic service, the required 81-day notice period is increased by 2 <i>court</i> days, or Thursday, April 30, 2026. Because Defendant Gallo served the motion on May 1, 2026, one day later, Defendant Gallo failed to provide the notice required under section 437c(a)(2). The trial court does not have the authority to "shorten the minimum notice period for hearings on summary judgment motions." (<i>Urshan v. Musicians' Credit Union</i> (2004) 120 Cal.App.4th 758, 764). "[W]aiver of the right to the statutorily mandated minimum notice period for summary judgment hearings should not be inferred from silence." (<i>Id.</i> at 768). Waiver of minimum notice can only be based on the affirmative assent of the affected parties. (<i>Id.</i>) There is no affirmative assent from Plaintiff here. For these reasons, the motion is DENIED. Moving Defendant to give notice.
5	Kang vs. Lucid Group USA, Inc.	OFF CALENDAR
6	Xu vs. American Honda Motor Co., Inc.	Defendant American Honda Motor Co. Inc.'s Petition and Motion to Compel Arbitration are DENIED. <u>Plaintiff's Opposition</u> Defendant Honda first argues that all allegations in its Petition to Compel Arbitration are deemed admitted because Plaintiff failed to file a response to the petition within 10 days.

Here, Defendant filed a Petition to Compel Arbitration (the “Petition”) on March 5, 2026 (ROA #12) in lieu of filing an answer, which set a hearing date for July 23, 2026. (Code Civ. Proc., § 1281.7). On June 26, 2026, Defendant then filed a notice of hearing and moving memorandum for its petition. (ROA #20).

While Plaintiff did not file a response to the petition 10 days after the petition was served, Plaintiff did file an opposition to Defendant’s motion to compel arbitration on July 7, 2026, which gave Defendant 12 days before the hearing to file a reply (3 more days notice than an opposition to a general motion).

Code of Civil Procedure section 1290 provides: “A response shall be served and filed within 10 days after service of the petition.... The time provided in this section for serving and filing a response may be extended by an agreement in writing between the parties to the court proceeding or, for good cause, by order of the court.”

Here, given the rights affected by the petition to compel arbitration, the court finds good cause to consider Plaintiff’s opposition a response to the petition. The court will consider the opposition on the merits. (See e.g., *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 847 (court “may consider untimely filed and served response papers, when no

prejudice to the petitioner is shown, without an order extending the 10-day time period of section 1290.6.”)

Arbitration Agreement at Issue

Attached as Exhibit 1 to the Petition is a copy of a warranty handbook”), which contains the following provision that provides in part: “Please note that this new vehicle limited warranty contains an arbitration provision that may affect your legal rights, and you agree that, pursuant to the Arbitration Provision contained in this warranty (beginning on page 6) of this booklet, that either you or American Honda Motor Co., Inc. may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision contained (beginning on page 6) of this new vehicle limited warranty for additional information concerning the agreement to arbitrate.” (Petition, Exh. 1 at p. 3).

Page 6 of the Warranty Booklet contains the Agreement to Arbitrate, which provides, in part: “You and we agree that any dispute arising out of or relating to any aspect of the relationship between you and Honda will not be decided by a judge or jury but instead by a single arbitration administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules in effect on the date of delivery of your vehicle to you. This Agreement to Arbitrate includes all claims, whether based in contract, tort, statute, fraud, misrepresentation or any other legal theory; claims arising out of your warranty; claims arising before or after this Agreement, such as claims related to statements about our products; claims about the performance, design of

our products, or manufacturing of our products; and claims that are currently the subject of purported class action litigation in which you are not a member of a certified class.
(Petition, Exh. 1, p. 6.)

The Agreement to Arbitrate further provides that Plaintiff could opt-out of arbitration: “You may opt out of arbitration within 30 days after the date of delivery of your vehicle to you by sending a letter to: Honda’s Office of the General Counsel, 1919 Torrance Blvd., Mail Stop CHI-5, Torrance, CA 90501, stating your name, Vehicle Identification Number, and intent to opt out of the arbitration provision. If you do not opt out, then this agreement to arbitrate is binding.” (Id., Exh. 1, p. 7.)

The Existence of an Arbitration Agreement

Here, Defendant argues that the arbitration agreement in the warranty attached as Exhibit 1 to the Petition binds Plaintiff. Plaintiff disputes ever seeing the warranty and challenges Defendant’s burden of establishing that Plaintiff received the warranty that is attached to Exhibit 1 of the Petition.

“An essential element of any contract is the consent of the parties or mutual assent.” (*Donovan v. RRL Corp.* (2001) 26 Cal.4th 261, 270; Civ. Code §§ 1550, 1565.) Consent is typically shown by one party’s offer, followed by the other’s acceptance and its communication to the offeror. (Rest. 2d Contracts §§ 22(1), 23-24.)

The question of the sufficiency of the initial burden on a motion to compel arbitration was addressed in *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215. The *Condee* court held that under California Code of Civil Procedure section 1281.2, a party seeking arbitration must allege to the existence of an agreement to arbitrate and attach a copy of the agreement to the petition or, alternatively, set forth the provisions verbatim in the petition. (*Condee*, at p. 218.) The court in *Condee* determined the parties seeking arbitration had properly alleged the existence of an arbitration agreement by attaching a copy of the agreement. (*Condee, supra*, 88 Cal.App.4th at p. 219.) It also concluded the parties seeking arbitration were not required to follow the normal procedures of document authentication and noted that section 1281.2 “does not require the petitioner to introduce the agreement into evidence.” (*Condee*, at pp. 218-219.) Furthermore, the court determined the trial court erred in denying the petitions to compel arbitration for failure to authenticate the arbitration agreement when the authenticity of the signature on the document was never challenged. (*Ibid.*)

Subsequent cases have considered *Condee* and analyzed in more detail the initial burden that section 1281.2 places on the party seeking arbitration. For example, in *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836 (*Ruiz*), the court held: “Properly understood, *Condee* holds that a petitioner is not required to authenticate

an opposing party's signature on an arbitration agreement as a preliminary matter in moving for arbitration *or* in the event the authenticity of the signature is not challenged.” (*Id.* at p. 846.) However, once the authenticity was challenged, the party seeking arbitration “had the burden of proving by a preponderance of the evidence that the electronic signature was authentic.” (*Ibid.*)

For example, in *Ruiz*, the court found “[though] Ruiz did not deny that the electronic signature on the 2011 agreement was his, he claimed he did not recall signing the 2011 agreement and would not have signed it had it been presented to him.” (*Id.* at 846). The court found that Ruiz’s testimony that he did not recall signing the agreement was sufficient to constitute a challenge to the authenticity of the agreement, such that the burden shifted to the defendant to prove by a preponderance of the evidence that the signature was authentic. (*Ibid.*) The court affirmed the trial court’s denial of the petition to compel arbitration, finding that defendant’s business manager’s declaration was insufficient as it merely “summarily asserted” that plaintiff-employee electronically signed the agreement. (*Id.* at 839). The court found that the declaration was insufficient because the manager did not explain how, or on what basis, the manager inferred that the electronic signature was “the act of” the plaintiff-employee; that the date and time printed on the agreement were accurate; that the electronic signature could only have been placed on the agreement by a person using the plaintiff-employee's unique identification number and password; and that the agreement was therefore signed by the plaintiff. (*Id.* at p. 844.)

Here, there is no evidence Plaintiff signed the arbitration provision or the Warranty Handbook or signed an acknowledgement of receipt of the Warranty Handbook. There is no evidence the Warranty Handbook was even presented to Plaintiff prior to, or after, purchase or that Plaintiff even reviewed the Warranty before filing this action. There is no declaration by a representative of Defendant stating that the Warranty Handbook that is attached as Exhibit 1 to the Petition, was, in fact, provided to Plaintiff.

While Defendant may have met its initial burden by attaching a copy of the Warranty Handbook with the arbitration agreement, Plaintiff’s declaration that no one at the dealership handed him a separate warranty booklet or asked Plaintiff to sign any document to acknowledge receipt of the Warranty Handbook is sufficient under *Ruiz* to shift the burden back to Defendant to provide admissible evidence that an arbitration agreement did, in fact, exist between the parties.

Defendant urges the court to follow *Kostandian v. American Honda Motor Co., Inc.* (2026) 120 Cal.App.5th 872, 876, a recently decided case in which the court of appeal upheld the enforceability of an arbitration provision in a warranty booklet with the same language as the one purportedly established here.

Notably, in *Kostandian*, the court relied on evidence that “Appellants presented a document, the final inspection at delivery sheet, *showing*

respondent provided his signature and initials confirming his receipt of the owner's manual and warranty information.” (Id. at 882 (emphasis added)). Based on these facts, the court of appeal held that “appellants satisfied their initial burden of establishing an arbitration agreement as to American Honda Motor. Appellants presented a copy of the agreement, stated the relevant terms thereof verbatim, and provided the necessary allegations.” (Id.)

No such evidence has been presented here that Plaintiff was presented with the warranty booklet or that Plaintiff provided his signature and initials confirming Plaintiff’s receipt of the warranty. Defendant contends that Plaintiff is bound by the allegations of the complain—i.e., that “Defendant provided an express written warranty relating to the VEHICLE.” (Complaint, ¶ 6). While Plaintiff alleges that Defendant provided an express written warranty with the purchase of the vehicle, there is insufficient evidence that Plaintiff actually received the warranty booklet that is attached as Exhibit 1 to the Petition.

In analogous cases, where an employee has signed an employment agreement that is separate and distinct from an employee handbook, courts have found that an arbitration agreement in the employee handbook does not create mutual assent. The court finds that the reasoning in those cases are persuasive to the facts here. As one court explained, “[t]o support a conclusion that an employee has relinquished his or her right to assert an employment-related claim in court, there must be more than a boilerplate arbitration clause buried in a lengthy employee handbook given to new employees. At a minimum, there should be a specific reference to the duty to arbitrate employment-related disputes in the acknowledgment of receipt form signed by the employee at commencement of employment.” (*Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 791; Compare with *Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 381 [employee's acknowledgement of receipt of employee handbook containing arbitration provision was sufficient to demonstrate an agreement to arbitrate]).

Here, there is no evidence that Plaintiff acknowledged receipt of the warranty, let alone was made aware of any specific reference to the opt-out arbitration agreement.

Defendant’s argument under doctrine of equitable estoppel also fails. Defendant argues that Plaintiff is equitably estopped from disclaiming the arbitration clause because “a litigant may not assert claims based on a contract while simultaneously arguing that an arbitration clause in that contract is ineffective,” citing *Norcia v. Samsung Telecommunications America, LLC* (9th Cir. 2017) 845 F.3d 1279, 1284.

The difference here is that Defendant failed to show the Warranty Handbook is an enforceable contract. It should be noted that warranties are different from contracts. Warranties, unlike contracts, do not impose binding obligations on the buyer. (See *Weinstat v. Dentsply Int’l*,

		<i>Inc.</i> (2010) 180 Cal.App.4th 1213, 1228-1229.) “A warranty relates to the title, character, quality, identity, or condition of the goods. The purpose of the law of warranty is to determine what it is that the seller has in essence agreed to sell.” (<i>Keith v. Buchanan</i> (1985) 173 Cal.App.3d 13, 20.) Based on those warranties, the seller is bound to deliver and the buyer to accept goods that match the warranties made. (<i>Ibid.</i>) Written warranties are merely a written statement of promises made to the consumer prior to a purchase, which constitute a declaration of the facts presented or promises made to the consumer in connection with the sale of a good. (Commercial Code, § 2313; Civil Code, §§ 1791.2, 1790.3; 15 U.S.C. § 2301(6).) While the seller may be held to the promises/warranties it made to a consumer prior to the sale of a vehicle, the written warranties do not constitute a contract between the manufacturer and the buyer. Rather, it is the retail installment sales contract that evidences the transaction. For these reasons, the court finds that Defendant has failed to establish that an enforceable arbitration agreement exists between Defendant and Plaintiff as it relates to the Owner’s Warranty. The motion is DENIED. Case Management Conference is continued to October 29, 2026 at 09:00 am in Department C10. Defendant to give notice.
7	Provenzano vs. Oremor Automotive Group, LLC	<u>Motion 1. Motion to Compel Responses to Special Interrogatories</u> <u>Motion 2. Motion to Compel Responses to Form Interrogatories</u> <u>Motion 3. Motion to Compel Responses to Requests for Production of Documents</u> <u>Motion 4. Motion to Deem Requests for Admission Admitted</u> The Court GRANTS Plaintiff ONM Environmental, Inc.’s motions to compel verified responses from Defendant Oremor Automotive Group, LLC to Form Interrogatories (Set One), Special Interrogatories (Set One), and Request for Production of Documents (Set One). The Court GRANTS Plaintiff ONM Environmental, Inc.’s motion to deem Requests for Admission (Set One) admitted by Defendant Oremor Automotive Group, LLC. A party may move for an order compelling responses to discovery at any time “[i]f a party to whom [discovery requests] are directed fails to serve a timely response.” (Code Civ. Proc., §§ 2030.290(b), 2031.300(b).) For a motion to compel initial discovery responses, all a propounding party must show is that it properly served its discovery requests, that the time to respond has expired, and that the party to whom the requests were directed failed to provide a timely response. (<i>See Leach v. Superior Court</i> (1980) 111 Cal.App.3d 902, 905-906.)

Code of Civil Procedure section 2033.280(b) provides that where a party to whom requests for admission are directed fails to serve a timely response, the propounding party “may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).”

By failing to serve timely responses, the responding party waives any objection to the written discovery. (Code Civ. Proc., §§ 2030.290(a), 2031.300(a), 2033.280(a).)

Here, the evidence establishes that Defendant failed to respond to the duly served discovery and therefore waived all objections. (*See* Chavos Decl. ¶¶ 3-8, Exs. 1-2.) There is no indication that Defendant served substantially compliant responses to the Requests for Admission before the hearing.

Defendant Oremor Automotive Group, LLC SHALL serve verified responses, without objections, to Plaintiff’s Form Interrogatories (Set One), Special Interrogatories (Set One), and Request for Production of Documents (Set One) within 15 days after service of this order.

Defendant Oremor Automotive Group, LLC is HEREBY DEEMED to have admitted the truth of the matters specified in and the genuineness of the documents attached to Plaintiff’s Requests for Admission (Set One).

Plaintiff’s request for sanctions against Defendant and its counsel is GRANTED in part. (*See* Code Civ. Proc., §§ 2023.010, 2030.290(c), 2031.300(c), 2033.280(c).) Defendant Oremor Automotive Group, LLC and its counsel are ordered to pay Plaintiff reasonable monetary sanctions of \$2,490.00 within 30 days after service of this order.

Plaintiff to give notice.